

Galaxy

SCIENCE FICTION

APRIL 1958

35¢

THE
SITTERS

By

**CLIFFORD
D. SIMAK**

•

THE ISLAND
OF THE
STONE
HEADS

By

**WILLY
LEY**

•

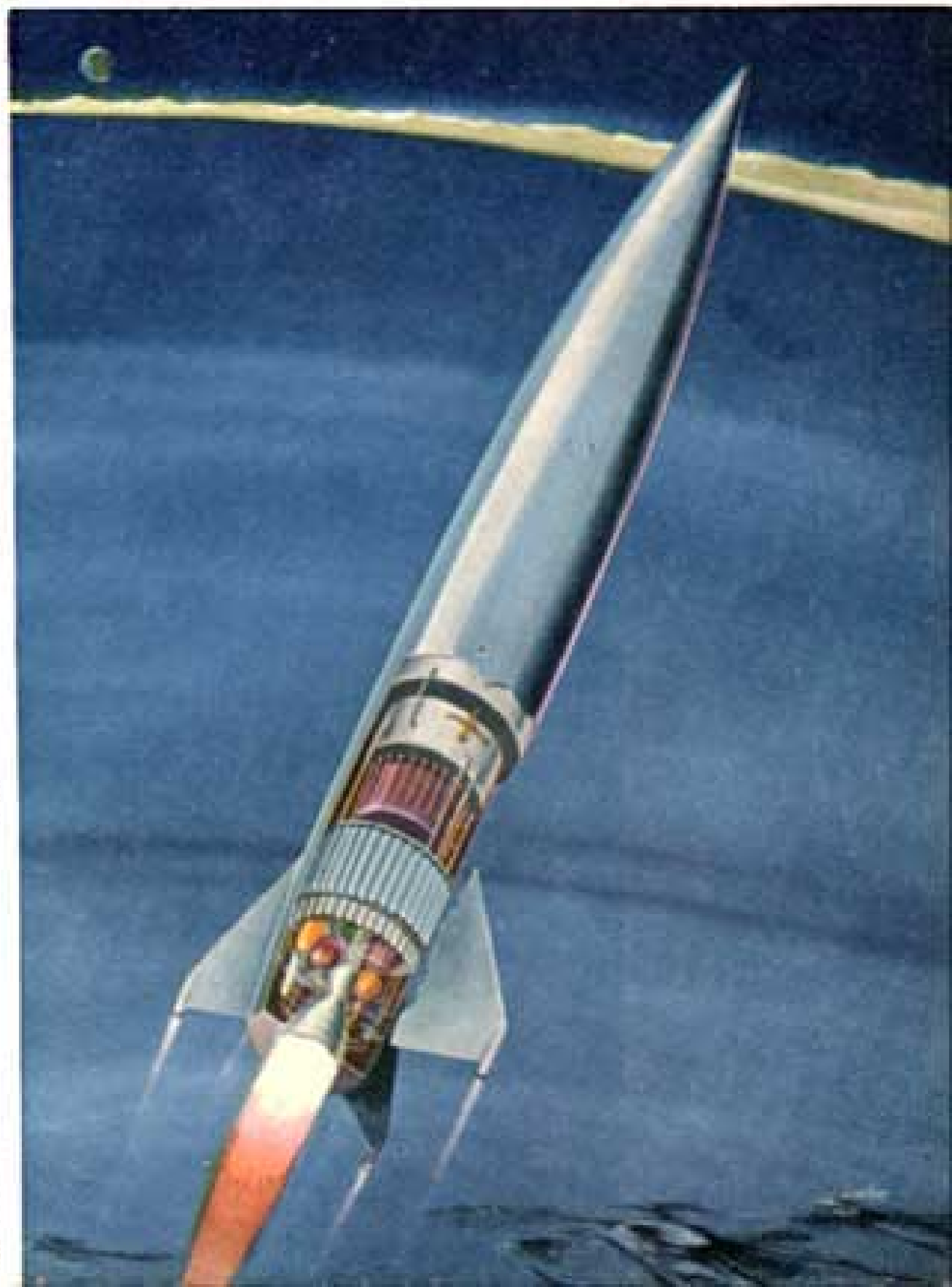
THE VOLCANIC
CONCLUSION OF

**THE
BIG
TIME**

By

**FRITZ
LEIBER**

And Other Stories



Galaxy

SCIENCE FICTION

APRIL 1958

35¢

THE
SITTERS

By

**CLIFFORD
D. SIMAK**

•

THE ISLAND
OF THE
STONE
HEADS

By

**WILLY
LEY**

•

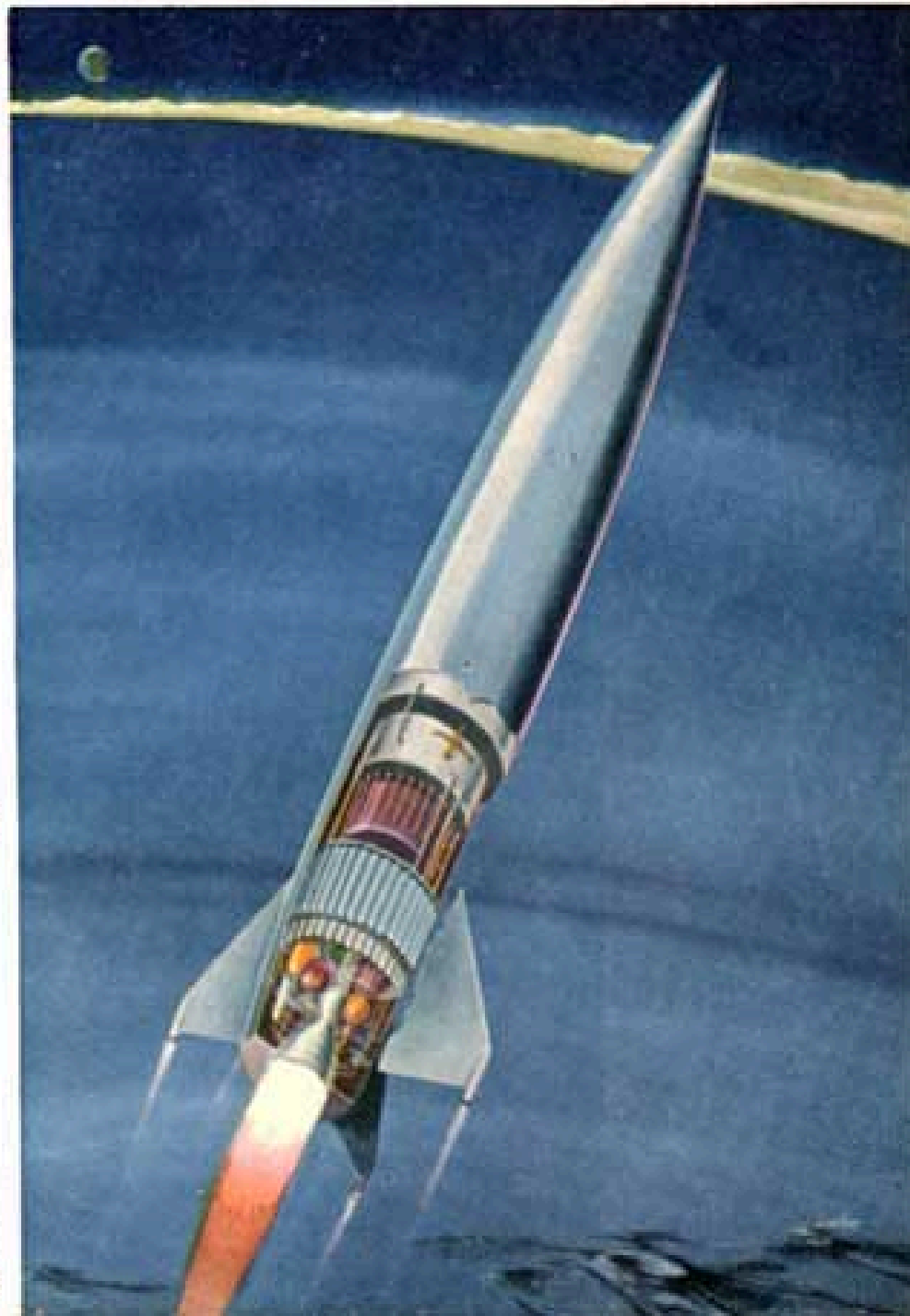
THE VOLCANIC
CONCLUSION OF

THE
BIG
TIME

By

**FRITZ
LEIBER**

And Other Stories



The Project Gutenberg eBook of The Eel

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Eel

Author: Miriam Allen De Ford

Illustrator: Diane Dillon
Leo Dillon

Release date: April 14, 2010 [eBook #31981]

Language: English

Other information and formats: www.gutenberg.org/ebooks/31981

Credits: Produced by Sankar Viswanathan, Greg Weeks, and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE EEL ***

Transcriber's Note:

This etext was produced from Galaxy Science Fiction April 1958. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed.

the eel

BY MIRIAM ALLEN DeFORD

Illustrated by DILLON

The punishment had to fit more than just the crime—it had to suit every world in the Galaxy!

He was intimately and unfavorably known everywhere in the Galaxy, but with special virulence on eight planets in three different solar systems. He was eagerly sought on each; they all wanted to try him and punish him—in each case, by their own laws and customs. This had been going on for 26 terrestrial years, which means from minus ten to plus 280 in some of the others. The only place that didn't want him was Earth, his native planet, where he was too smart to operate—but, of course, the Galactic Police were looking for him there too, to deliver him to the authorities of the other planets in accordance with the Interplanetary Constitution.

For all of those years, The Eel (which was his Earth monicker; elsewhere, he was known by names indicating equally squirmey and slimy life-forms) had been gayly going his way, known under a dozen different aliases, turning up suddenly here, there, everywhere, committing his gigantic depredations, and disappearing as quickly and silently when his latest enterprise had succeeded. He specialized in enormous, unprecedented thefts. It was said that he despised stealing anything under the value of 100 million terrestrial units, and most of his thefts were much larger than that.

He had no recognizable *modus operandi*, changing his methods with each new crime. He never left a clue. But, in bravado, he signed his name to

every job: his monicker flattered him, and after each malefaction the victim—usually a government agency, a giant corporation, or one of the clan enterprises of the smaller planets—would receive a message consisting merely of the impudent depiction of a large wriggling eel.

They got him at last, of course. The Galactic Police, like the prehistoric Royal Canadian Mounted, have the reputation of always catching their man. (Sometimes they don't catch him till he's dead, but they catch him.) It took them 26 years, and it was a hard job, for The Eel always worked alone and never talked afterward.

They did it by the herculean labor of investigating the source of the fortune of every inhabitant of Earth, since all that was known was that The Eel was a terrestrial. Every computer in the Federation worked overtime analyzing the data fed into it. It wasn't entirely a thankless task, for, as a by-product, a lot of embezzlers, tax evaders and lesser robbers were turned up.

In the end, it narrowed down to one man who owned more than he could account for having. Even so, they almost lost him, for his takings were cached away under so many pseudonyms that it took several months just to establish that they all belonged to the same person. When that was settled, the police swooped. The Eel surrendered quietly; the one thing he had been surest of was never being apprehended, and he was so dumfounded he was unable to put up any resistance.

And then came the still greater question: which of the planets was to have him?

Xystil said it had the first right because his theft there had been the largest—a sum so huge, it could be expressed only by an algebraic index. Artha's argument was that his first recorded crime had been on that planet. Medoris wanted him because its only penalty for any felony is an immediate and rather horrible death, and that would guarantee getting rid of The Eel forever.

Ceres put in a claim on the ground that it was the only planet or moon in the Sol System in which he had operated, and since he was a terrestrial, it was a matter for local jurisdiction. Eb pleaded that it was the newest and poorest member of the Galactic Federation, and should have been protected in its inexperience against his thievishness.

Ha-Almirath argued that it had earned his custody because it was its Chief Ruler who had suggested to the police the method which had resulted in his arrest. Vavinour countered that it should be the chosen recipient, since the theft there had included desecration of the High Temple.

Little Agsk, which was only a probationary Galactic Associate, modestly said that if it were given The Eel, its prompt and exemplary punishment might qualify it for full membership, and it would be grateful for the chance.

A special meeting of the Galactic Council had to be called for the sole purpose of deciding who got The Eel.

Representatives of all the claimant planets made their representations. Each told in eloquent detail why his planet and his alone was entitled to custody of the arch-criminal, and what they would do to him when—not if—they got him. After they had all been heard, the councilors went into executive session, with press and public barred. An indiscreet councilor (it was O-Al of Phlagon of Altair, if you want to know) leaked later some of the rather indecorous proceedings.

The Earth councilor, he reported, had been granted a voice but no vote, since Earth was not an interested party as to the crime, but only as to the criminal. Every possible system of arbitration had been discussed—chronological, numerical in respect to the size of the theft, legalistic in respect to whether the culprit would be available to hand on to another victim when the first had got through punishing him.

In the welter of claims and counterclaims, one harassed councilor wearily suggested a lottery. Another in desperation recommended handing The Eel a list of prospective punishments on each of the eight planets and observing which one seemed to inspire him with most dread—which would then be

the one selected. One even proposed poisoning him and announcing his sudden collapse and death.

The sessions went on day and night; the exhausted councilors separated for brief periods of sleep, then went at it again. A hung jury was unthinkable; something had to be decided. The news outlets of the entire Galaxy were beginning to issue sarcastic editorials about procrastination and coddling criminals, with hints about bribery and corruption, and remarks that perhaps what was needed was a few impeachments and a new general election.

So at last, in utter despair, they awarded The Eel to Agsk, as a sort of bonus and incentive. Whichever planet they named, the other seven were going to scream to high heaven, and Agsk was least likely to be able to retaliate against any expressions of indignation.

Agskians, as everyone knows, are fairly humanoid beings, primitives from the outer edge of the Galaxy. They were like college freshmen invited to a senior fraternity. This was their Big Chance to Make Good.

The Eel, taciturn as ever, was delivered to a delegation of six of them sent to meet him in one of their lumbering spaceships, a low countergrav machine such as Earth had outgrown several millennia before. They were so afraid of losing him that they put a metal belt around him with six chains attached to it, and fastened all six of themselves to him. Once on Agsk, he was placed in a specially made stone pit, surrounded by guards, and fed through the only opening.

In preparation for the influx of visitors to the trial, an anticipated greater assembly of off-planeters than little Agsk had ever seen, they evacuated their capital city temporarily, resettling all its citizens except those needed to serve and care for the guests, and remodeled the biggest houses for the accommodation of those who had peculiar space, shape, or other requirements.

Never since the Galactic Federation was founded had so many beings, human, humanoid, semi-humanoid and non-humanoid, gathered at the same time on any one member-planet. Every newstape, tridimens, audio and all other varieties of information services—even including the drum amplifiers of Medoris and the ray-variants of Eb—applied for and were granted a place in the courtroom. This, because no other edifice was large enough, was an immense stone amphitheater usually devoted to rather curious games with animals; since it rains on Agsk only for two specified hours on every one of their days, no roof was needed. At every seat, there was a translatophone, with interpreters ready in plastic cages to translate the Intergalactic in which the trial was conducted into even the clicks and hisses of Jorg and the eye-flashes of Omonro.

And in the midst of all this, the cause and purpose of it all, sat the legendary Eel.

Seen at last, he was hardly an impressive figure. Time had been going on and The Eel was in his fifties, bald and a trifle paunchy. He was completely ordinary in appearance, a circumstance which had, of course, enabled him to pass unobserved on so many planets; he looked like a salesman or a minor official, and had indeed been so taken by the unnoticed inhabitants of innumerable planets.

People had wondered, when word came of some new outrage by this master-thief, if perhaps he had disguised himself as a resident of the scene of each fresh crime, but now it was obvious that this had not been necessary. He had been too clever to pick any planet where visitors from Earth were not a common sight, and he had been too insignificant for anyone to pay attention to him.

The criminal code of Agsk is unique in the Galaxy, though there are rumors of something similar among a legendary extinct tribe on Earth called the Guanches. The high priest is also the chief executive (as well as the minister of education and head of the medical faculty), and he rules jointly with a priestess who also officiates as chief judge.

The Agskians have some strange ideas to a terrestrial eye—for example, suicide is an honor, and anyone of insufficient rank who commits it condemns his immediate family to punishment for his presumption. They are great family people, in general. Also, they never lie, and find it hard to realize that other beings do.

Murder, to them, is merely a matter for negotiation between the murderer and the relatives of the victim, provided it is open and without deceit. But grand larceny, since property is the foundation of the family, is punished in a way that shows that the Agskians, though technologically primitive, are psychologically very advanced.

They reason that death, because it comes inevitably to all, is the least of misfortunes. Lasting grief, remorse and guilt are the greatest. So they let the thief live and do not even imprison him.

Instead, they find out who it is that the criminal most loves. If they do not know who it is, they merely ask him, and since Agskians never lie, he always tells them. Then they seize that person, and kill him or her, slowly and painfully, before the thief's eyes.

And the agreement had been that The Eel was to be tried and punished by the laws and customs of the planet to which he was awarded.

The actual trial and conviction of The Eel were almost perfunctory. Without needing to resort to torture, his jailers had been presented, on a platter as it were, with a full confession—so far as the particular robbery he had committed on Agsk was concerned. There is a provision for defense in the Agskian code, but it was unneeded because The Eel had pleaded guilty.

But he knew very well he would not be executed by the Agskians; he would instead be set free (presumably with a broken heart) to be handed over to the next claimant—and that, the Council had decided, would be Medoris. Since Medoris always kills its criminals, that would end the whole controversy.

So the Eel was quite aware that his conviction by Agsk would be only the preliminary to an exquisitely painful and lingering demise at the two-clawed hands of the Medorans. His business was somehow to get out from under.

Naturally, the resources of the Galactic Police had been at the full disposal of the officials of Agsk.

The files had been opened, and the Agskians had before them The Eel's history back to the day of his birth. He himself had been questioned, encelographed, hypnotized, dormitized, injected, psychographed, subjected to all the means of eliciting information devised by all eight planets—for the other seven, once their first resentment was over, had reconciled themselves and cooperated whole-heartedly with Agsk.

Medoris especially had been of the greatest help. The Medorans could hardly wait.

In the spate of news of the trial that inundated every portion of the Galaxy, there began to be discovered a note of sympathy for this one little creature arrayed against the mightiest powers of the Galaxy. Poor people who wished they had his nerve, and romantic people who dreamed of adventures they would never dare perform, began to say that The Eel wasn't so bad, after all; he became a symbol of the rebellious individual thumbing his nose at entrenched authority. Students of Earth prehistory will recognize such symbols in the mythical Robin Hood and Al Capone.

These were the people who were glad to put up when bets began to be made. At first the odds were ten to one against The Eel; then, as time dragged by, they dropped until it was even money.

Agsk itself began to be worried. It was one thing to make a big, expensive splurge to impress the Galaxy and to hasten its acceptance into full membership in the Federation, but nobody had expected the show to last more than a few days. If it kept on much longer, Agsk would be bankrupt.

For the trial had foundered on one insoluble problem: the only way The Eel could ever be punished by their laws was to kill the person he most loved—and nobody could discover that he had ever loved anybody.



His mother? His father? He had been an undutiful and unaffectionate son, and his parents were long since dead in any case. He had never had a brother, a sister, a wife or a child. No probing could find any woman with whom he had ever been in love. He had never had an intimate friend.

He did nothing to help, naturally. He simply sat in his chains and smiled and waited. He was perfectly willing to be escorted from the court every evening, relieved of his fetters and placed in his pit. It was a much pleasanter existence than being executed inch by inch by the Medorans. For all he cared, the Agskians could go on spending their planetary income until he finally died of old age.

The priestess-judge and her co-adjutors wore themselves out in discussions far into the night. They lost up to 15 pounds apiece, which on Agsk, where the average weight of adults is about 40, was serious. It began to look as if The Eel's judges would predecease him.

Whom did The Eel love? They went into minutiae and subterfuges. He had never had a pet to which he was devoted. He had never even loved a house which could be razed. He could not be said to have loved the immense fortune he had stolen, for he had concealed his wealth and used little of it, and in any event it had all been confiscated and, so far as possible, restored proportionately to those he had robbed.

What he had loved most, doubtless, was his prowess in stealing unimaginable sums and getting away with it—but there is no way of "killing" a criminal technique.

Almost a year had passed. Agsk was beginning to wish The Eel had never been caught, or that they had never been awarded the glory of trying him.

At last the priestess-judge, in utter despair, took off her judge's robes, put on the cassock and surplice of her sacred calling, and laid the problem before the most unapproachable and august of the gods of Agsk.

The trial was suspended while she lay for three days in a trance on the high altar. She emerged weak and tottering, her skin light blue instead of its healthy purple, but her head high and her mouth curved in triumph.

At sight of her, renewed excitement surged through the audience. News-gatherers, who had been finding it difficult of late to get anything to report, rushed to their instruments.

"Remove the defendant's chains and set him free," the priestess-judge ordered in ringing tones. "The Great God of the Unspeakable Name has revealed to me whom the defendant most loves. As soon as he is freed, seize him and slay him. For the only being he loves is—himself."

There was an instant's silence, and then a roar. The Medorans howled in frustration.

But The Eel, still guarded but unchained, stood up and laughed aloud.

"Your Great God is a fool!" he said blasphemously. "I deny that I love myself. I care nothing for myself at all."

The priestess-judge sighed. "Since this is your sworn denial, it must be true," she said. "So then we cannot kill you. Instead, we grant that you do indeed love no one. Therefore you are a creature so far outside our comprehension that you cannot come under our laws, no matter how you have broken them. We shall notify the Federation that we abandon our jurisdiction and hand you over to our sister-planet which is next in line to judge you."

Then all the viewers on tridimens on countless planets saw something that nobody had ever thought to see—The Eel's armor of self-confidence cracked and terror poured through the gap.

He dropped to his knees and cried: "Wait! Wait! I confess that I blasphemed your god, but without realizing that I did!"

"You mean," pressed the priestess-judge, "you acknowledge that you yourself are the only being dear to you?"

"No, not that, either. Until now, I have never known love. But now it has come upon me like a nova and I must speak the truth." He paused, still on his knees, and looked piteously at the priestess-judge. "Are—are you bound by your law to—to believe me and to kill, instead of me, this—this being I adore?"

"We are so bound," she stated.

"Then," said The Eel, smiling and confident again, rising to his feet, "before all the Galaxy, I must declare the object of my sudden but everlasting passion. Great lady, it is you!"

The Eel is still in his pit, which has been made most comfortable by his sympathizers, while the Council of the Galactic Federation seeks feverishly and vainly, year after year, to find some legal way out of the impasse.

Agsk, however, requests all Federation citizens to submit solutions, the grand prize for a workable answer being a lifetime term as president of the planet. A secondary contest (prize: lifetime ambassadorship to the Galactic Federation) is offered for a legal way around the statute barring criminals (specifically The Eel) from entering the primary contest.

—**MIRIAM ALLEN
DeFORD**

*** END OF THE PROJECT GUTENBERG EBOOK THE EEL ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.